

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

THE ESTATE OF MICHAEL ROSADO, by Marta
Negron as proposed Administratrix, and Marta
Negron, Individually,

Index No.:

COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK, VLORA GJEKA,
MICHAEL J. SALINE, and John Does "I-X" whose
names are currently unknown and are fictitious,

Defendants.

Plaintiff, by her attorneys, SONIN & GENIS, as and for its Complaint,
respectfully alleges, upon information and belief:

1. The Plaintiff, MICHAEL ROSADO, at all times herein mentioned was a resident of Bronx County, State of New York.
2. On or about November 8, 2021, a Notice of Claim was timely and properly served upon the Defendant THE CITY OF NEW YORK. ("City")
3. A hearing pursuant to Gen. Mun 50-h was held on October 11, 2022.
4. More than 30 days have elapsed since the presentment of this claim and the City has failed or refused to adjust the claim
5. At all times mentioned, Defendant CITY was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
6. The CITY is authorized by law to maintain a police department
7. The New York City Police Department (NYPD) is a municipal agency of

Defendant CITY OF NEW YORK with multiple Police Precincts including the 46th Precinct, which acts for it in the area of law enforcement, and for whose acts CITY OF NEW YORK is ultimately responsible.

8. At all times mentioned the Defendant, CITY OF NEW YORK, owned, organized, kept and maintained, controlled, managed and operated NYPD.
9. MICHAEL J. SALINE was and is employed by the Defendant CITY OF NEW YORK as a police officer with the NYPD, and at all times hereinafter mentioned, was acting within the scope of and in the course of his employment and under the authority and color of State Law.
10. VLORA GJEKA was and is employed by the Defendants CITY OF NEW YORK as a police officer of the NYPD, and at all times hereinafter mentioned, was acting within the scope of and in the course of his employment and under the authority and color of State Law.
11. Defendants John Does "I-X" whose names are currently unknown and are fictitious, were and are employed by the Defendants CITY OF NEW YORK as police officers of the NYPD, and at all times hereinafter mentioned, were acting within the scope of and in the course of their employment and under the authority and color of State Law.
12. Defendant CITY OF NEW YORK hired, trained, retained, monitored and supervised the NYPD's staff, agents, servants, employees, including but not limited to police officers and detectives and others working, in the community.
13. At all times relevant Defendant MICHAEL J SALINE, was a NYPD officer

acting under color of State law.

14. At all times relevant defendant MICHAEL J SALINE was acting as an agent, servant, and/or employee of The Defendant CITY OF NEW YORK and said Defendant is sued in his individual and official capacity.

15. At all times relevant defendants MICHAEL J SALINE was a duly sworn NYPD officer and/or detective and was acting under the supervision of NYPD and according to his official duties.

16. At all times relevant defendants MICHAEL J SALINE was acting under color of State law and was supposed to be in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or The Defendant CITY OF NEW YORK.

17. At all times relevant defendant VLORA GJEKA, was a NYPD officer and/or detective acting under color of State law.

18. At all times relevant defendant VLORA GJEKA was acting as an agent, servant, and/or employee of The Defendant CITY OF NEW YORK and said Defendant is sued in his individual and official capacity.

19. At all times relevant defendants VLORA GJEKA was a duly sworn NYPD officer and was acting under the supervision of NYPD and according to his official duties.

20. At all times relevant defendants VLORA GJEKA was acting under color of State law and was supposed to be in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or

The Defendant CITY OF NEW YORK.

21. Defendants CITY OF NEW YORK and its agents, servants and employees including Defendants MICHAEL J SALINE and VLORA GJEKA shall properly protect the rights of all persons and shall follow and obey all laws with respect to the search, seizure, detention, arrest, confinement, use of force, use of physical force, and prosecution and assistance in the prosecution of all persons.
22. Defendants CITY OF NEW YORK and its agents, servants and employees including Defendants MICHAEL J SALINE and VLORA GJEKA shall not without reasonable, proper and due cause, detain, search, seize, arrest, confine and prosecute and assist in the prosecution of persons nor use unnecessary, or excessive force
23. Each and all of the acts of Defendants MICHAEL J SALINE and VLORA GJEKA alleged herein were carried out by said defendants while acting within the scope of their employment by Defendant CITY OF NEW YORK.
24. On August 29, 2021, at approximately 4:12 a.m. Michael Rosado was at or near the intersection of East 180th Street and Valentine Avenue, Bronx, New York.
25. At the aforementioned time and place, the Defendants, their agents, servants, employees, including but not limited to Defendants MICHAEL J SALINE, VLORA GJEKA had contact with Plaintiff MICHAEL ROSADO.
26. On or about August 29, 2021, Plaintiff, MICHAEL ROSADO, was shot and killed by Defendant CITY OF NEW YORK through its agents, servants, employees,

including but not limited to the Defendants MICHAEL J SALINE and/or VLORA GJEKA.

27. Upon information and belief, Michael Rosado was unarmed at the time he was shot and killed.

28. Upon information and belief, Defendants MICHAEL J SALINE and VLORA GJEKA knew Michael Rosado was unarmed when they shot and killed him.

29. Upon information and belief, Defendants MICHAEL J SALINE and VLORA GJEKA should have known Michael Rosado was unarmed when they shot and killed him.

AS AND FOR A FIRST CAUSE OF ACTION: NEGLIGENCE

30. Plaintiff ESTATE OF MICHAEL ROSADO repeats and re-alleges each and every previous allegation with the same force and effect as if hereinafter set forth at length and incorporates through reference each and every subsequent allegation with the same force and effect as if hereinafter set forth at length.

31. At the above place and date and at other locations and times, known by Defendants were negligent with respect to their improper use of excessive force; negligent infliction of emotional distress; negligent hiring, training, supervision, monitoring and retention of agents, servants and employees; failed to have and/or properly use an early warning screening system for psychological profiles and failed to detect and/or respond in an appropriate manner to signs and symptoms presented by police officers involved herein; breach of special duty; failed to properly supervise, safeguard, and monitor Plaintiff MICHAEL

ROSADO and in violation of the United States, New York State, and/or New York City civil and constitutional rights of the plaintiff; in assaulting, battering MICHAEL ROSADO; in using excessive force against MICHAEL ROSADO; in failing to properly hire, train, retain, supervise and monitor the afore said police officers; in delaying, denying and obstructing the medical care and treatment of MICHAEL ROSADO; and in depriving MICHAEL ROSADO of his rights.

32. Defendant City of New York failed to exercise discretion with respect to the foregoing and claims made herein.

33. Defendant City of New York took positive control of a known and dangerous safety condition.

34. Defendant City of New York took positive action in assuming direction and control over the dangerous situation of its own making.

35. Defendant City of New York had actual knowledge of the dangerous condition(s).

36. Defendant City of New York had the authority to halt, control or direct work thereat or related thereto.

37. Plaintiff-decedent belonged to a class for whose benefit a statute, code, rule, regulation, ordinance was enacted.

38. Defendant City of New York voluntarily assumed a duty to the plaintiff beyond what was owed to the public generally.

39. Defendant City of New York breached a special duty owed.

40. As a result of the foregoing, Plaintiff MICHAEL ROSADO, was placed in apprehension of imminent harmful or offensive contact, and caused him to suffer

personal injuries, conscious pain and suffering, loss of enjoyment of life,
emotional upset, shock and fright, fear of impending death.

41. As a result of the foregoing, Plaintiff MICHAEL ROSADO sustained damages in an amount of money which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, and within the jurisdiction of this court.

AS AND FOR A SECOND CAUSE OF ACTION: ASSAULT

42. Plaintiff MICHAEL ROSADO repeats and re-alleges each and every previous allegation with the same force and effect as if hereinafter set forth at length and incorporates through reference each and every subsequent allegation with the same force and effect as if hereinafter set forth at length.

43. As a result of the conduct described above, MICHAEL ROSADO was placed in apprehension of imminent harmful and offensive bodily contact, and caused him to suffer personal injuries, conscious pain and suffering, loss of enjoyment of life, emotional upset, shock and fright, fear of impending death.

44. As a result of Defendants' acts and omissions, MICHAEL ROSADO has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, humiliation, and in violation of the United States and/or New York State civil and constitutional rights of the plaintiff.

45. As a result of the foregoing, Plaintiff ESTATE OF MICHAEL ROSADO, sustained damages in an amount of money which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter,

and within the jurisdiction of this court.

AS AND FOR A THIRD CAUSE OF ACTION: BATTERY

46. Plaintiff ESTATE OF MICHAEL ROSADO repeats and re-alleges each and every previous allegation with the same force and effect as if hereinafter set forth at length and incorporates through reference each and every subsequent allegation with the same force and effect as if hereinafter set forth at length.
47. As a result of the conduct described above, defendants, their agents/servants/employees/ contractors/subcontractors made offensive contact with MICHAEL ROSADO without privilege or consent.
48. As a result of defendants, their agents/servants/employees/contractors/ subcontractors' conduct, MICHAEL ROSADO suffered in apprehension of imminent harmful or offensive contact, and caused him to suffer personal injuries, conscious pain and suffering, loss of enjoyment of life, emotional upset, shock and fright, fear of impending death, and in violation of the United States and/or New York State civil and constitutional rights of the plaintiff.
49. As a result of the foregoing, Plaintiff ESTATE OF MICHAEL ROSADO, sustained damages in an amount of money which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, and within the jurisdiction of this court.

AS AND FOR A FOURTH CAUSE OF ACTION: EXCESSIVE FORCE

50. Plaintiff ESTATE OF MICHAEL ROSADO repeats and re-alleges each and every previous allegation with the same force and effect as if hereinafter set

forth at length and incorporates through reference each and every subsequent allegation with the same force and effect as if hereinafter set forth at length.

51. The level of force employed by Defendant CITY OF NEW YORK, its agents, servants and employees, including but not limited to Defendants MICHAEL J. SALINE and/or VLORA GJEKA was excessive, objectively unreasonable, resulting in MICHAEL ROSADO's death, and otherwise in violation of the United States and/or New York State, civil and constitutional rights of the plaintiff.
52. As result of Defendant CITY OF NEW YORK, its agents, servants and employees, including but not limited to Defendants MICHAEL J. SALINE and/or VLORA GJEKA conduct described above, ROSADO was subjected to excessive force and sustained serious physical injuries and emotional distress.
53. As a result of the foregoing, Plaintiff MICHAEL ROSADO, sustained damages in an amount of money which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, and within the jurisdiction of this court.

AS AND FOR A FIFTH CAUSE OF ACTION: DEPRIVATION OF RIGHTS

54. Plaintiff ESTATE OF MICHAEL ROSADO repeats and re-alleges each and every previous allegation with the same force and effect as if hereinafter set forth at length and incorporates through reference each and every subsequent allegation with the same force and effect as if hereinafter set forth at length.
55. At the above place and date and other locations known exclusively by

defendants, Defendants, were acting under color of state law, through their inadequate training or supervision of their agents, servants and employees, defendants evinced a pattern of deliberate indifference to the individual, civil and constitutional rights of others so as to ratify such conduct and violate the rights of others, and violated decedent MICHAEL ROSADO's Civil and Constitutional Rights, as guaranteed by the Charter and Code of the City of New York, the Constitution of the State of New York and NYS Statutes/rules/regulations/ policies/codes, and the Constitution of the United States of America, 42 USC 1981 – 2000(e) *et seq.*, 42 USC 1983, and the New York State Civil Rights Law; delayed in properly responding to decedent's complaints; violated decedent's local, State and Federal Civil rights, including but not limited 42 USC § 1981, 42 USC § 1983, violated 4th , 8th 14th Amendment to US Constitution; employed excessive force; acted in a discriminatory manner; delayed, denied and obstructed proper medical care and treatment; acted in a discriminatory manner on the basis of decedent's race/ethnicity; decedent was deprived of his civil rights by defendants, their agents/servants/employees, and others acting under color of state law; supervisors/superiors condoned or ratified improper conduct or a pattern of improper conduct or of deliberate indifference to decedent's rights; and the individual defendant police officers also individually violated decedent's rights as set forth herein; defendants' conduct and negligence shocks the conscience and rises to the level of a Civil Rights Violation; and the aforesaid caused him to suffer personal injuries, conscious

pain and suffering, loss of enjoyment of life, emotional upset, shock and fright, fear of impending death.

56. As a result of the foregoing, decedent MICHAEL ROSADO sustained damages in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, and this court does have jurisdiction of this matter, and attorneys' fees on said claims.

AS AND FOR A SIXTH CAUSE OF ACTION – WRONGFUL DEATH

57. Plaintiff repeats and re-alleges each and every allegation previously made with the same force and effect as if hereinafter set forth at length herein.

58. The above-mentioned wrongful act/omissions were a proximate cause of decedent MICHAEL ROSADO'S death.

59. By virtue of decedent MICHAEL ROSADO'S wrongful death, his next of kin, distributees, and plaintiff are entitled to recover for their pecuniary damages and decedent's wrongful death.

60. Pursuant to NYS EPTL §§ 5-4.1 through 5-4.5, 5-4.3, 5-4.4, 1-2.5, 11-3.3, and the case law interpreting same, decedent's next of kin, distributees and plaintiff are entitled to be compensated for their resultant losses of intellectual, moral and physical training, guidance, assistance, services, nurture, care, love, advice, etc.; loss of earnings and support, and loss of estate/inheritance; special damages, medical/hospital, funeral and burial expenses incurred.

61. By reason of the foregoing, plaintiffs and the family/distributees of decedent MICHAEL ROSADO have been deprived by decedent's death and their resultant

economic and pecuniary losses and as set forth above and herein.

62. As a result of the foregoing, decedent MICHAEL ROSADO sustained damages in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, and this court does have jurisdiction of this matter, and as set forth above, and for punitive damages and attorneys' fees.

AS AND FOR A SEVENTH CAUSE OF ACTION: SUPERVISORY LIABILITY

63. Plaintiff MICHAEL ROSADO repeats and re-alleges each and every previous allegation with the same force and effect as if hereinafter set forth at length and incorporates through reference each and every subsequent allegation with the same force and effect as if hereinafter set forth at length.

64. Defendant CITY OF NEW YORK, its agents, servants and employees, including but not limited to those individuals of CITY OF NEW YORK POLICE DEPARTMENT, Defendants MICHAEL J. SALINE and/or VLORA GJEKA, and John Does I-X, who held supervisory positions in the NYPD personally caused ROSADO constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly supervise and train their subordinate employees in violation of the United States, New York State, and/or New York City civil and constitutional rights of the plaintiff; in condoning/ratifying improper acts; falsely and wrongfully detaining, arresting, imprisoning MICHAEL ROSADO; in assaulting, battering MICHAEL ROSADO; in using excessive force against MICHAEL ROSADO; in failing to properly hire, train,

retain, supervise and monitor the afore said police officers; in delaying, denying and obstructing the medical care and treatment of MICHAEL ROSADO; in maliciously prosecuting MICHAEL ROSADO; in depriving MICHAEL ROSADO of his rights; failing to safeguard MICHAEL ROSADO; conspiring to deprive MICHAEL ROSADO of his rights.

65. As a result of the foregoing, Plaintiff MICHAEL ROSADO, sustained damages in an amount of money which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, and within the jurisdiction of this court.

AS AND FOR AN EIGHTH CAUSE OF ACTION: MUNICIPAL LIABILITY
(DEFENDANT CITY OF NEW YORK)

66. Plaintiff MICHAEL ROSADO repeats and re-alleges each and every previous allegation with the same force and effect as if hereinafter set forth at length and incorporates through reference each and every subsequent allegation with the same force and effect as if hereinafter set forth at length.

67. The City and NYPD have repeatedly been the subject of litigation alleging the violation of the civil rights of citizens, and/or excessive force.

68. The NYPD's 46th Precinct has been the subject of numerous police brutality lawsuits, with no less than ten since 2015, including, but not limited to:

- A. Murray v. City of New York, et. al., 809893/2021E (Bx County)
- B. Rodriguez v. City of New York, et. al., 25580/2020E (Bx County)
- C. Edwards v. City of New York, et. al. 26806/2020E (Bx County)
- D. Velasquez v. City of New York, et. al., 808843/2021E (Bx County)
- E. Parker v. City of New York, et. al. 301397/2016 (Bx County)
- F. Herrera v. City of New York, et. al. 29939/2017E (Bx County)
- G. Marlin v. City of New York, et. al. 1:15-cv-2235-CM (SDNY)

- H. Davis v. City of New York, et.al. 35305/2019E (Bx County)
- I. Soriano, et. al. v. City of New York, et. al., 32413/2020E (Bx County)
- J. Torres v. City of New York, et. al., 806922/2022E (Bx County)
- K. Estime v. City of New York, et. al., 301719-2016 (Bx County)

69. This constitutes an ongoing pattern of complaints against officers of the 46th precinct for acts/omissions that show a conscious disregard for the rights, safety and wellbeing of individuals living and working within the boundaries of the precinct by those members of the NYPD employed therein.
70. Defendant CITY OF NEW YORK, its agents, servants and employees, including but not limited to MICHAEL J. SALINE, VLORA GJEKA, and John Does I-X, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, or ratified the act(s)/omission(s) of its above named individuals, that are defendants' agents/servants/employees/vendors/contractors/sub or independent contractors, which is forbidden by the Constitution of the United States.
71. The aforementioned customs, policies, usages, practices, procedures and rules or ratifications of City of New York Police Department included, but were not limited to, using excessive force against individuals; covering up said acts by manufacturing evidence and otherwise engaging in falsification; delaying/denying and obstructing their medical care and treatment; violating their civil rights; in assaulting, battering MICHAEL ROSADO; in using excessive force against MICHAEL ROSADO; in failing to properly hire, train, retain, supervise and monitor the afore said police officers; in delaying, denying

and obstructing the medical care and treatment of MICHAEL ROSADO; in depriving MICHAEL ROSADO of his rights; failing to safeguard MICHAEL ROSADO; conspiring to deprive MICHAEL ROSADO of his rights.

72. Defendant CITY OF NEW YORK engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training, and supervising and monitoring its employees/agents/servants and others described above, and that said act(s)/omission(s) were a proximate cause of the violation of MICHAEL ROSADO's civil and constitutional rights as guaranteed by the United States, the State of New York, and/or City of New York.

73. Defendant CITY OF NEW YORK was negligent in the screening, hiring, retaining, training, and supervising and monitoring its employees/agents/servants and others described above, and that said act(s)/omission(s) were a proximate cause of the violation of MICHAEL ROSADO's civil and constitutional rights as guaranteed by the United States, the State of New York, and/or City of New York.

74. As a result of the failure of CITY OF NEW YORK to properly recruit, screen, train, discipline, monitor and supervise its officers, including the individual defendants, Defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

75. The foregoing customs, policies, usages, practices, procedures and rules of CITY OF NEW YORK and NYPD constituted deliberate indifference to the safety,

well-being and constitutional rights of MICHAEL ROSADO.

76. The foregoing customs, policies, usages, practices, procedures and rules of City of New York and NYPD were the direct and proximate cause of the wrongful death suffered by MICHAEL ROSADO as alleged herein.

77. The foregoing customs, policies, usages, practices, procedures and rules of City of New York and NYPD were the direct and proximate cause of the constitutional violations suffered by MICHAEL ROSADO as alleged herein.

78. The foregoing customs, policies, usages, practices, procedures and rules of City of New York and NYPD were the moving force behind the Constitutional violations suffered by MICHAEL ROSADO as alleged herein.

79. As a result of the foregoing customs, policies, usages, practices, procedures and rules of City of New York and NYPD, MICHAEL ROSADO was subjected to excessive force.

80. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating ROSADO's civil and constitutional rights as guaranteed by the United States and/or the State of New York.

81. As a result of the foregoing, Plaintiff ESTATE OF MICHAEL ROSADO, sustained damages in an amount of money which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, and within the jurisdiction of this court.

Dated: Bronx, New York
November 28, 2022

Robert J. Genis

By: Robert J. Genis, Esq.
Sonin & Genis, LLC